Shanmuka Sreeteja Gottada vs State Of Nct Of Delhi & Anr on 8 December, 2022

Author: Anup Jairam Bhambhani

Bench: Anup Jairam Bhambhani

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* IN THE HIGH COURT OF DELHI AT NEW DELHI
+ BAIL APPLN. 3136/2022
SHANMUKA SREETEJA GOTTADA ..... P
Through: Mr. Manu Sharma, Mr. Manav Vohra, Mr. Kartik Khanna, Mr. Arj Kakkar, Mr. Abhyuday Sharma, Mr.Kartikay Masta & Mr. Gyanendra Kumar, Advocates.
versus
STATE OF NCT OF DELHI & ANR. ..... Respond
Through: Mr. Shoiab Haider, APP for the St with Mr. Mohd. Zaid, Advocate wit SI Rachna, P.S. Sector 23 Dwarka. Mr. Raghav Mittal & Mr. Aakash Gokhar, Advocates for R-2.
CORAM:
HON'BLE MR. JUSTICE ANUP JAIRAM BHAMBHANI
ORDER

% 08.12.2022 By way of the present petition under section 439 of the Code of Criminal Procedure 1973, the petitioner, who is facing trial in case FIR No. 392/2022 dated 23.09.2022 under section 376 of the Indian Penal Code, 1860 ('IPC' for short) registered at P.S.: Sector 23, Dwarka, seeks enlargement on bail pending trial.

2. The petitioner was in police custody from 04.10.2022 to 06.10.2022 and has thereafter been in judicial custody since 07.10.2022.

3. Very briefly, the factual allegations that are relevant for consideration of the present bail petition, as contained in the FIR are the following:

> 3.1. The petitioner and the prosecutrix are stated to have known each other since around 2010, when they attended the same school in Andhra Pradesh; whereafter, the petitioner shifted to the United States;
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> 3.2. Upon his return to India, the petitioner and the prosecutrix maintained contact and met at the Taj Vivanta Hotel, Dwarka, Delhi in December 2018; on which occasion, the prosecutrix alleges, the petitioner attempted to sexually harass her.

Subsequently, the parties reconnected and engaged in a romantic relationship;

3.3. The prosecutrix alleges that physical relationship was made between the parties on the petitioner's promise to marry her; 3.4. Thereafter, the parties admittedly began living together in Hyderabad and also engaged in collaborative business, wherefrom disputes arose between the petitioner and the prosecutrix concerning money allegedly borrowed by the petitioner from the prosecutrix;

3.5. The petitioner then received lawyer's notice dated 12.09.2022 issued on behalf of the prosecutrix, calling upon him to pay-back the amounts allegedly due to the prosecutrix;

3.6. Subsequently, the subject bearing FIR No. 392/2022 under section 376 IPC came to be filed on 23.09.2022.

4. Mr. Manu Sharma, learned counsel appearing for the petitioner submits, that it is evident that the allegations are founded upon a consensual love affair and physical relationship between the petitioner and the prosecutrix, which went sour for reasons which are not relevant for the present proceedings.

5. Mr. Sharma submits that despite an alleged forced episode of physical relations in 2018, the prosecutrix thereafter came back into the petitioner's life after she broke-off from her earlier relationship. Counsel submits that the repeated meetings, travels and cohabitation between the parties portrays clear and unequivocal consent to the physical relationship between them, with no element of force, fraud or coercion. Mr. Sharma further submits that the allegation that the physical relationship was a result of a 'false promise of marriage' is also unfounded inasmuch as the educational background of the prosecutrix, and her consistent and unreserved engagements with the petitioner is proof positive of the fact that the prosecutrix was fully informed and was not deceived into the relationship.

6. In this behalf, attention of the court is drawn to the observations of the Supreme Court in Pramod Suryabhan Pawar vs. State of Maharashtra and Anr.1, which have been further cited and affirmed in Sonu alias Subhash Kumar vs. State of Uttar Pradesh and Anr.2 and Shambhu Kharwar vs. State of Uttar Pradesh & Anr.3, wherein the Supreme Court has held as follows:

> "12. This Court has repeatedly held that consent with respect to Section 375 of the IPC involves an active understanding of the circumstances, actions and consequences of the proposed act. An individual who makes a reasoned choice to act after evaluating various alternative actions (or inaction) as well as the various possible consequences flowing from such action or inaction, consents to such action...
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> (2019) 9 SCC 608 2021 SCC OnLine SC 181 2022 SCC OnLine SC 1032 [...] "14. [...] Specifically in the context of a promise to marry, this Court has observed that there is a distinction between a false promise given on the understanding by the maker that it will be broken, and the breach of a promise which is made in good faith but

subsequently not fulfilled...

[...] "16. Where the promise to marry is false and the intention of the maker at the time of making the promise itself was not to abide by it but to deceive the woman to convince her to engage in sexual relations, there is a "misconception of fact" that vitiates the woman's "consent". On the other hand, a breach of a promise cannot be said to be a false promise. To establish a false promise, the maker of the promise should have had no intention of upholding his word at the time of giving it. The "consent" of a woman under Section 375 is vitiated on the ground of a "misconception of fact"

where such misconception was the basis for her choosing to engage in the said act...

[...] "18. To summarise the legal position that emerges from the above cases, the "consent" of a woman with respect to Section 375 must involve an active and reasoned deliberation towards the proposed act. To establish whether the "consent" was vitiated by a "misconception of fact" arising out of a promise to marry, two propositions must be established. The promise of marriage must have been a false promise, given in bad faith and with no intention of being adhered to at the time it was given. The false promise itself must be of immediate relevance, or bear a direct nexus to the woman's decision to engage in the sexual act."

(emphasis supplied)

7. Also referring to the decision of the Supreme Court in Sonu @ Subhash Kumar (supra), which has been cited in Shambhu Kharwar (supra), Mr. Sharma submits that in these cases, the Supreme Court has in-fact proceeded to quash the charge under section 376 IPC, sought to be levelled on the basis of a false promise of marriage.

8. The petitioner has also cited the decisions of Co-ordinate Benches of this court in Anand Kaushal vs. State (Govt. of NCT of Delhi)4 and Shailendra Kumar Yadav vs. State 5 where this court has taken a similar view as regards the allegation of rape founded upon an alleged false promise to marry.

9. If anything was to remain, Mr. Sharma submits that Lawyer's Notice dated 12.09.2022 issued on behalf of the prosecutrix sealed the issue, inasmuch as, after reciting the allegations by rote in the said notice, the prosecutrix proceeds to demand from the petitioner a sum of about Rs. 1 crore under various heads, including refund of amounts loaned, compensation for mental agony and harassment, and for defamation arising from loss of commercial reputation and revenue. This, Mr. Sharma submits is a give-away, which shows the falsity of the entire narrative sought to be built by the prosecutrix alleging a false promise of marriage.

10. Opposing the grant of bail on the other hand, Mr. Shoiab Haider, learned APP appearing for the State points-out that criminality is disclosed from the allegation, as contained in the FIR, that the first 2020 SCC OnLine Del 2475 2022 SCC OnLine Del 976 engagement of the petitioner with the prosecutrix was back in 2018 at a hotel in Dwarka, New Delhi, where, according to the prosecutrix,

the petitioner attempted forcible physical relations with her. It is seen however, that the FIR itself narrates that subsequently, after a lapse of 01 year or so, the prosecutrix re-engaged with the petitioner, though she says, on false promise of marriage.

11. Mr. Raghav Mittal and Mr. Akash Gokhar, learned counsel appearing for the prosecutrix have also opposed the grant of bail, submitting that the falsity of the promise of marriage is evident from the circumstances of the case. It is their contention that the prosecutrix was deeply invested emotionally, mentally as well as physically in the relationship only for the reason that the petitioner had extended to her the promise to marry, which turned-out to be false. Counsel also draw attention to certain WhatsApp conversations to support their contention that the physical relationship was based upon the petitioner's promise to marry.

12. Learned counsel for the prosecutrix cite the decision of the Supreme Court in State of U.P. vs. Naushad6, to say that in view of section 90 IPC, consent given under a 'misconception of fact' is no consent in law. It is noticed however, that the said decision proceeded on allegations of enticement and cheating under the promise to marry in a factual scenario which does not even remotely resemble that in the present case. It was in entirely different circumstances that the (2013) 16 SCC 651 Supreme Court had allowed the appeal, setting-aside the conviction in that case.

13. Counsel also cite the decision of the Supreme Court in Anurag Soni vs. State of Chhattisgarh7 on the same lines, submitting that in that case also, the Supreme Court had upheld the conviction, holding that a false promise of marriage cannot be the basis of consent for purposes of section 376 IPC. Yet again, however, it is seen that the said case proceeded on a different factual matrix, whereby the accused was already engaged to be married to another person at the time when he extended the promise of marriage to the prosecutrix.

14. Attention is also drawn to the decision in Kalesh Mohanan vs. State8 in which a Co-ordinate Bench of this court had declined anticipatory bail to an undertrial, who was accused of having committed the offence under section 376 IPC on the pretext of marriage. It is noticed however, that in the said case also, the relevant facts were different from the present case, inasmuch as the allegations in the case cited related to the prosecutrix having been administered sedatives and having been threatened that her photographs and video recordings would be leaked in the context of the alleged offence.

15. Without delving any further into the merits of the allegations in the present case, for the purpose of the present petition seeking regular bail, this court is persuaded by the following:

> (2019) 13 SCC 1 2021 SCC OnLine Del 4078 15.1 As has been held by the Supreme Court in the various decisions inter-alia cited above, a false promise of marriage is different and distinct from a breach of promise of marriage. It is to be appreciated that though every false promise would be broken, every broken promise may not be false. In Pramod S. Pratap what the Supreme Court has said bears repetition:
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> "11. ...

> 18. To summarise the legal position that emerges from the above cases, the "consent" of a woman with respect to Section 375 must involve an active and reasoned deliberation towards the proposed act. To establish whether the "consent" was vitiated by a "misconception of fact" arising out of a promise to marry, two propositions must be established. The promise of marriage must have been a false promise, given in bad faith and with no intention of being adhered to at the time it was given. The false promise itself must be of immediate relevance, or bear a direct nexus to the woman's decision to engage in the sexual act."

(emphasis supplied) 15.2 In the present case, in the opinion of this court, on the basis of the material presently on record it cannot be said with any certitude that the petitioner's alleged promised to marry the prosecutrix was a false promise. The prosecutrix is a well- educated person, with a very long-standing familiarity and relationship with the petitioner from their school days. Her engagement with the petitioner, as detailed above, has continued over a prolonged period of time, admittedly with repeated episodes of physical liaison, which cannot all have been based merely on a promise to marry. How then can it be said, that the alleged false promise to marry was itself of immediate relevance, or bore a direct nexus to her decision to engage in the physical relationship, in fulfilment of the test laid-down by the Supreme Court in the afore-cited case. 15.3 The WhatsApp chats between the petitioner and the prosecutrix filed by the petitioner, also evidence at least prima-facie, that marriage between the parties was on the cards; to which end, the petitioner was to speak to his parents. Had it been a case of rank falsity of promise, it is difficult to believe that the petitioner would have gone even to the extent of assuring the prosecutrix that he would speak to his parents. What went wrong is, however, in the realm of speculation and is not required to be gone into in the present proceedings. Suffice it to say, that nothing on the record persuades the court to believe that the promise to marry, even if such promise was made, was false or was ex-facie informed by deception;

15.4 The record shows that the parties are also involved in financial disputes, which is evident from the Lawyer's Notice dated 12.09.2022 referred to above, with the prosecutrix demanding from the petitioner substantial sums of money, which she claims were due, in addition to compensation on various counts. The exact relevance of such financial disputes to the allegations of the sexual offence, is something that would need to be adjudicated closely in the course of trial; but suffice it to say, that at this stage, these circumstances add other dimensions to the allegation of rape on a false promise of marriage.

16. While certain other aspects also appear from the record, which may add to the court's view in the matter, the court would restrain from delving any further into the matter lest it interferes with a fair trial, to which the petitioner and the prosecutrix are both entitled.

17. The court is informed that investigation in the matter is complete and chargesheet has been filed on 22.11.2022; and is awaiting scrutiny by the learned trial court.

18. Upon a prima-facie conspectus of the aforesaid facts and circumstances, this court is persuaded to accept the present petition; and to grant to the petitioner regular bail pending trial, subject to the

following conditions:

18.1. The petitioner shall furnish a personal bond in the sum of Rs.1,00,000/- (Rs. One Lac Only) with 01 surety in the like amount from a family member, to the satisfaction of the learned trial court;

18.2. Since the petitioner is stated to be an ordinary resident of Visakhapatnam, Andhra Pradesh at the address appearing in the memo of parties, from where he carries on his business, it is directed that should the petitioner intend to leave the municipal limits of Vishakhapatnam, he shall furnish prior written intimation to the Investigation Officer by e-mail/WhatsApp on the e-mail ID or phone number to be furnished to the petitioner by the Investigating Officer. It is made clear however, that the petitioner shall not require prior permission to travel;

18.3. The petitioner shall furnish to the Investigating Officer/S.H.O. a cellphone number on which the petitioner may be contacted at any time and shall ensure that the number is kept active and switched-on at all times;

18.4. The petitioner shall surrender his passport(s) to the learned trial court and shall not travel out of the country without prior permission of this court;

18.5. The petitioner shall not contact, nor visit, nor offer any inducement, threat or promise to the prosecutrix or to any of the prosecution witnesses or other persons acquainted with the facts of the case. The petitioner shall not tamper with evidence nor otherwise indulge in any act or omission that is unlawful or that would prejudice the proceedings in the pending trial.

19. Nothing in this order shall be construed as an expression of opinion on the merits of the pending matter.

20. A copy of this order be sent to the concerned Jail Superintendent forthwith.

21. The petition is allowed, and disposed of accordingly.

22. Pending applications, if any, also stand disposed of.

ANUP JAIRAM BHAMBHANI, J.

DECEMBER 8, 2022/uj